

10	Kaur vs. Hill 2024-01436693	1. Motion – Other 2. Status Conference re: ADR Plaintiffs Mandip Kaur and Amrit Pal Singh’s motion to lift stay, resume jurisdiction, and find arbitration waived, is DENIED WITHOUT PREJUDICE. First, proof of service is defective, as the sender’s electronic service address is missing. (Code Civ. Proc., § 1013b, subd. (b)(1).) There is no response by defendant waiving the defective proof of service. (See Carlton v. Quint (2000) 77 Cal.App.4th 690, 698 [response on merits can waive service defect].) Second, the motion is also denied on the merits. Moving parties have not shown that they are entitled to relief pursuant to Code Civ. Proc., §§ 1281.97 et seq., as there is no evidence this matter involves “an employment or consumer arbitration.” (Code Civ. Proc., §§ 1281.97, subd. (a)(1), 1281.98, subd. (a)(1); see also § 1280, subds. (c), (f) [defining “consumer” and “employee,” respectively]; First Amended Complaint, Exs. A and B [contracts pertaining to sale of business].) There is no evidence that the arbitration has been terminated or dismissed. (SWAB Financial, LLC v. E*Trade Securities, LLC (2007) 150 Cal.App.4th 1181, 1200 [“Once a petition is granted and the lawsuit is stayed, ‘the action at law sits in the twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration ... In the interim ... It is the job of the arbitrator, not the court, to resolve all questions needed to determine the controversy ... It is also up to the arbitrator, and not the court, to grant relief for delay in bringing an arbitration to a resolution;” internal citations omitted].) There is also no evidence that moving parties have taken any action in the arbitration proceedings for relief from defendant’s failure to pay arbitration fees. (See Brock v. Kaiser Foundation
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		Hospitals (1992) 10 Cal.App.4th 1790, 1808 [failure to cooperate in arbitration “does not mean that a party to an arbitration proceeding has no remedy against dilatory tactics,” but “may move in the arbitration proceedings to terminate them for failure to pursue the arbitration claim with reasonable diligence”]; Cinel v. Christopher (2012) 203 Cal.App.4th 759, 769 [resuming court jurisdiction].) ***ADR Review is continued to January 25, 2027 at 9 AM. Moving Party shall give notice of all the above.
11	Terteryan vs. Toyota Motor Sales, U.S.A., Inc. 2025-01510573	1. Motion to Compel Deposition (Oral or Written) 2. Motion to Compel Production MOTION NO. 1 Defendant Toyota Motor Sales, U.S.A., Inc.’s Motion to Compel Plaintiff Gevorg Terteryan’s Deposition is MOOT. Plaintiff’s deposition notice was served on October 6, 2025, with the deposition scheduled for December 11, 2025. (Webber Decl., ¶ 2. Exh. A.) Plaintiff objected to the date of the deposition, but failed to provide an alternative date, despite repeated attempts by defense counsel to obtain a new date. It now appears Plaintiff’s deposition went forward on May 6, 2026. The Court finds no substantial justification for Plaintiff’s failure to appear at his deposition date or provide dates for his deposition. Thus, Defendant’s request for monetary sanctions is GRANTED at a reduced amount for a total of \$720.00 (2 hrs at \$330/hr + \$60 filing fee) against Plaintiff and his counsel of record.